

STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

IN RE:)
CATHLEEN W. HELFAND) Docket No. 2014-49
License No. 097.0000738)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont, by and through State Prosecuting Attorney S. Lauren Hibbert, and the Respondent, Cathleen W. Helfand, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of licensing violations committed by non-licensed and non-certified psychotherapists pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65; and the Administrative Rules for the Board of Allied Mental Health Practitioners, and the Rules of the Vermont Office of Professional Regulation.

Stipulated Facts

2. Cathleen W. Helfand (the "Respondent") of Cabot, Vermont on the State of Vermont roster as a non-licensed and non-certified psychotherapist under roster number 097.0000738. Respondent was originally placed on the roster on September 14, 2000 and it expires on or about November 30, 2016.
3. At all times relevant, Respondent worked out of her office in Cabot, Vermont.
4. In reviewing a complaint filed with the Office of Professional Regulation it was discovered that Respondent has failed to provide clients with the disclosures required by ARBAMHR 5.4(a). Respondent stated she was unaware of the requirement to provide disclosures to clients.

Violations

5. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent is in violation of:

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89 Main Street
3rd Floor
Montpelier, VT
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- a. 3 V.S.A. § 129a(a)(3) (Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession).

Understandings

6. Respondent acknowledges that the facts above are true and that the conditions set out in the Consent Order below are appropriate.
7. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
8. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a contested hearing.
9. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
10. Respondent is not under the influence of any drugs or alcohol at the time Respondent signs this Stipulation and Consent Order.
11. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
12. Respondent voluntarily waives Respondent's right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
13. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board hereby **REPRIMANDS** the Respondent's license. Respondent is required to pay an administrative penalty in the amount of five hundred dollars within ninety days. Failure to pay the administrative penalty shall constitute a violation of the order.
- B. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.

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C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

D. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 8/19/15

By: S. Lauren Hibbert
S. Lauren Hibbert
State Prosecuting Attorney

CATHLEEN W. HELFAND
RESPONDENT

Dated: 8.19.15

By: Cathleen W. Helfand
Cathleen W. Helfand

APPROVED AS TO FORM:

ATTORNEY FOR RESPONDENT

Dated: 8/19/15

By: Richard Windish, Esq.
Richard Windish, Esq.

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED
MENTAL HEALTH

Dated: 8/20/15
Date of Entry: 8/20/15

By: William Sealist
Chairperson

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